

Doctrine of Frustration (Section 56 Contracts)

Formula: 1 -> 2 -> 3 -> 4 (4-Step Frustration Test) | Subject: Contracts & Civil

I. COGNITIVE FORMULA & MNEMONIC BREAKDOWN

- â€ [1] - Valid Subsisting Contract: Enforceable agreement existed between parties
- â€ [2] - Supervening Event: Post-contractual, unforeseen occurrence
- â€ [3] - Substratum Destroyed: Performance becomes physically or legally impossible
- â€ [4] - No Party Fault: Neither promisor nor promisee caused or contributed to the event

II. PRACTICAL USAGE IN JUDICIAL EXAMINATIONS

Crucial Distinction: Commercial difficulty, financial hardship, or market fluctuations do NOT constitute frustration under Indian law (Satyabrata Ghose).

III. FREQUENT PRELIMS & MAINS TRAPS TO AVOID

- â€ Always verify exceptions and statutory provisos before applying the direct formula.